CHAPTER 94 Important Doctrines of Constitutional Interpretation

DOCTRINE OF SEVERABILITY

1. Meaning of the Doctrine

The doctrine of severability is also known as the doctrine of separability. This doctrine was devised by the Supreme Court to resolve the problem of the validity of laws which are declared as unconstitutional.

When a part of the law is declared as institutional, then a question arises whether the whole of the law is to be declared void or only that part of the law, which is unconstitutional should be declared as void. According to this doctrine, if the offending provision of the law can be separated from that provision which is constitutional, then only that part of the law, which is offending, is to be declared as void and not the whole of the law. In other words, if the invalid part of the law can be separated from the rest, then the rest may continue to be valid and operative. If, however, it is not possible to separate the valid part of the law from the invalid part, then the whole of the law is declared as void.

2. Basis of the Doctrine

Article 13 is the basis of the doctrine of severability. It makes the following two provisions in this regard:

1. Article 13(1) deals with the pre-constitution laws and declares that all such laws are void to the extent to which they are inconsistent with the Fundamental Rights[1].
2. Article 13(2) deals with the post-constitution laws and prohibits the state from making a law which takes away or abridges the Fundamental Rights and any such law is void to the extent of the contravention[2].

Only that portion of a law, which violates the Fundamental Rights, can be declared as void and not the whole of it.

The Supreme Court has explained the doctrine of severability in the following way[3]:



“The question whether a statute which is void in part is to be treated as void in toto, or whether it is capable of enforcement as to that part which is valid. The answer to this question must depend on whether what is valid could be separated from what is invalid, and that is a question which has to be decided by the Court on a consideration of the provisions of the Act.”

3. Propositions of the Doctrine